

EXHIBIT 40

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

LEXINGTON LUMINANCE LLC,	)	
	)	
Plaintiff,	)	
	)	
v.	)	CIVIL ACTION
	)	NO. 12-11554-WGY
FEIT ELECTRIC COMPANY, INC.,	)	
	)	
Defendants.	)	
	)	

YOUNG, D.J.

June 25, 2013

ORDER

This order serves merely to memorialize the constructions of the claim terms in U.S. Patent No. 6,936,851 that the Court announced from the bench at the claim construction hearing held on June 24 and 25, 2013. In sum, the Court adopts the parties' agreed-upon constructions (reproduced below):

Claim Term	Construction
"substrate"	"the supporting material upon which the other layers of a light-emitting device are grown"
"active layer"	"the layer in the light-emitting device that emits the light"
"disposed on"	"applied directly or indirectly above"

Claim Term	Construction
"so as to guide the extended lattice defects away from propagating into the active layer"	"such that free propagation of extended lattice defects into the active layer is significantly reduced relative to a device made by the same process without the textured districts"

Further, the Court adopts the following constructions for those claim terms over which the parties are in dispute:

Claim Term	Construction
"etched trenches"	"areas in the surface of the substrate from which some amount of material is removed in order to create an extended depression on the surface of the substrate that serves the purpose of minimizing the propagation of lattice defects into the active layer"
"microfacets"	"planar surfaces on the order of microns or smaller in size"
"sloped etching profile with a smooth rotation of microfacets"	"etched cross-section without sharp corners and with a gradual, incremental rotation in slope from microfacet to microfacet"
"prescribed"	"constant"

Claim Term	Construction
"profile . . . without a prescribed angle of inclination"	"cross-section . . . without a constant angle of inclination such that there are no linear portions"
"having"	"consisting of"
"layer"	"a thickness of material, which may be made up of sub-layers, but does not refer to a substrate"
"first layer . . . comprising a plurality of inclined lower portions"	"first layer . . . comprising two or more portions that grow in such a manner as to reduce dislocation defects"

SO ORDERED.

/s/William G. Young
WILLIAM G. YOUNG
DISTRICT JUDGE